IN THE NATIONAL COMPANY LAW TRIBUNAL,
NEW DELHI COURT III (SPECIAL BENCH)

Item No.103
New IA (Comp.A) - 213/2022
In
CAA-36(ND)/2021

IN THE MATTER OF:
M/s. A.Y. Traders Pvt. Ltd. And M/s. Pernam Comtrade Ltd

.....APPLICANT/PETITIONER

SECTION
U/s 230/232

Order delivered on 06.09.2022

CORAM:
DR. BINOD KUMAR SINHA
MEMBER (TECHNICAL)

SHRI BACHU VENKAT BALARAM DAS
MEMBER (JUDICIAL)

PRESENT:
For the Applicant : Mr. Saurabh Kalia, Advocate
For the Respondent : Hemlata Rawat Counsel for OL

ORDER

New IA(Comp.A)-213/2022 :

This new IA has been filed in CAA-36/ND/2021 which is a 2nd Motion Petition.

The present Application has been filed under Section 420 of the Companies Act, 2013 read with Rule 11 and 154 of the NCLT Rules, 2016 for rectification of the order dated 02.6.2022 passed by this Tribunal.

Mr. Saurabh Kalia, Ld. Counsel appearing for the Applicant submits that this Tribunal heard the 2nd Motion Application filed by the petitioner bearing CAA-36/ND/2021 on 21st April, 2021 and order in this said matter were pronounced on 2nd June, 2022. On a perusal of the order, which has been uploaded on the website of the Tribunal, it is observed the order mistakenly pertaining to the 1st Motion Application for issuance of directions for publication of notice to the Press and issue notice to the other Authorities has

contd-

been passed. He has, therefore, prayed that the said order dated 02.6.2022 may be rectified /recalled.

Section 420 (2) of the Companies Act, 2013 empowers this Tribunal to rectify any mistake apparent from the record and amend any order passed by it if the mistake is brought to its notice by the party within two years from the date of issue of order.

Further, Rule 11 of the NCLT Rules, 2016 gives inherent powers to the Tribunal to make such orders as may be necessary for meeting the ends of justice or to prevent the abuse of power of the Tribunal. Rule 154 (1) of the NCLT Rules envisages that any clerical or arithmetical mistakes in any order of the Tribunal or error therein arising from any accidental slip or omission may, at any time, be corrected by the Tribunal on its own motion or on application of any party by way of rectification of such final order within two years.

Since inadvertently mistake has crept in the order dated 02.6.2022, in which, by mistake the order pertaining to 1st Motion petition has been passed instead of passing an order which should be passed in the present petition, we therefore, in exercise of the powers conferred under Section 420 (2) of the Companies Act, 2013 and Rule 154 (1) of the NCLT Rules, 2016 read with Rule 11 of the NCLT Rules rectify/recall the order dated 02.6.2022 and direct the Registry to list the main matter i.e. CAA-36/2021 for passing necessary orders.

IA **allowed.**

List the main matter on 22.9.2022 for arguments.

-Sd-

(DR. BINOD KUMAR SINHA)
MEMBER (TECHNICAL)

-Sd-

(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

Surjit (Court-III)
06.09.2022